

restrictions if any, based upon race, color, sex, marital status, or national origin are deleted unless and only to the extent that said covenants, conditions and restrictions are exempt under Chapter 42, Section 3307 of the United States Code or (b) relates to handicap but does not discriminate against handicapped persons

DECLARATION OF
COVENANTS, CONDITIONS AND RESTRICTIONS
OF
OAKTREE PARK - TRACT #5052

THIS DECLARATION, made on the date hereinafter set forth by DITZ-CRANE, a California corporation, hereinafter referred to as "Declarant".

WITNESSETH:

WHEREAS, Declarant is the owner of certain property in the City of San Jose, County of Santa Clara, State of California, which is more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference.

NOW, THEREFORE, Declarant hereby declares that all of the properties described above shall be held, sold and conveyed subject to the following easements, restrictions, covenants, and conditions, which are for the purpose of protecting the value and desirability of, and which shall run with, the real property and be binding on all parties having any right, title or interest in the described properties or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each owner thereof.

ARTICLE I DEFINITIONS

Section 1. "Association" shall mean and refer to OAKTREE PARK CABANA CLUB, its successors and assigns.

Section 2. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title to any lot which is a part of the Properties, including contract sellers, but excluding those having such interest merely as security for the performance of an obligation.

Section 3. "Properties" shall mean and refer to that certain real property hereinbefore described, and such additions thereto as may hereafter be brought within the jurisdiction of the Association.

Section 4. "Common Area" shall mean all real property owned by the Association for the common use and enjoyment of the Owners. The Common Area to be owned by the Association at the time of the conveyance of the first Lot is more particularly described in Exhibit "B" attached hereto and made a part hereof by this reference.

Section 5. "Lot" shall mean and refer to any residential plot of land shown upon any recorded subdivision map of the Properties with the exception of the Common Area, and, in respect of the provisions of Sections 2 and 3 of Article II and of Article IV of this Declaration, shall include any residential plot of land owned by an Owner (as above defined).

Section 6. "Declarant" shall mean and refer to DITZ-CRANE, a corporation, its successors and assigns if such successors or assigns should acquire more than one undeveloped Lot from the Declarant for the purpose of development, and any person, firm or corporation now or hereafter owning more than one undeveloped Lot for the purpose of development and any person, firm or corporation now or hereafter owning more than one undeveloped Lot for the purpose of development and their respective successors and assigns if such successors or assigns should acquire more than one undeveloped Lot for the purpose of development.

Section 7. "Board" shall mean and refer to the Board of Directors of the Association.

Section 8. "Mortgage" shall mean and refer to a voluntary lien against a Lot and shall include a Deed of Trust.

Section 9. "Restrictions" shall mean and refer to the covenants, conditions, restrictions and equitable servitudes herein set forth.

Section 10. "Articles" shall mean and refer to the Articles of Incorporation of the Association.

Section 11. "By-Laws" shall mean and refer to the By-Laws of the Association.

Section 12. "Rules" shall mean and refer to the Rules of the Association.

Section 13. "Approval" shall mean and refer to prior written approval.

Section 14. "Member" shall refer to a member of the Association and "Members" shall refer to members of the Association.

ARTICLE II PROPERTY RIGHTS

Section 1. Easements Reserved. Easements, as indicated upon the recorded Map(s) of the Properties, are granted for the installation and maintenance of sewers, pole lines, utilities, rights of way and other uses for public or quasi-public good. No buildings shall be placed upon such easements or interference be made with the free use of the same for the purposes intended.

Section 2. Owners' Easements of Enjoyment. Every owner shall have a right and easement of enjoyment in and to the Common Area which shall be appurtenant to and shall pass with the title to every Lot, subject to the following provisions:

(a) the right of the Association to charge reasonable admission and other fees for the use of any recreational facility situated upon the Common Area;

(b) the right of the Association to suspend the voting rights and right to use of the recreational facilities by an owner for any period during which any assessment against his Lot remains unpaid; and for a period not to exceed thirty (30) days for any infraction of its published rules and regulations after hearing by the Board of Directors of the Association;

(c) the right of the Association to dedicate or transfer all or any part of the Common Area to any public agency, authority, or utility for such purposes and subject to such conditions as may be agreed to by the members. No such dedication or transfer shall be effective unless an instrument signed by two-thirds (2/3) of each class of members agreeing to such dedication or transfer has been recorded.

Section 3. Delegation of Use. Any Owner may delegate, in accordance with the By-Laws, his right of enjoyment to the Common Area to the members of his family who reside on his Lot or to tenants or contract purchasers who reside on his Lot.

ARTICLE III
USE RESTRICTIONS

Section 1. Definitions. The word "plot" as used in this Article means an individual site for a residence, together with the grounds in connection therewith, whether composed of one or more Lots or parts thereof. The word "building" as used in this Article is defined to mean a structure with a roof or overhead structure of any kind, whether such roof be enclosed, covered or open framework.

Section 2. Land Use. No plot, except areas specifically designated as Common Areas, shall be used except for residential purposes and no structure shall be erected, altered, placed or permitted to remain on a plot other than one detached single-family dwelling, not to exceed two stories in height and a private garage and other out-buildings incidental to the residential use of the plot.

Section 3. Setback. No building shall be located on any plot nearer than twenty (20) feet to the front property line or nearer than ten (10) feet to a side street line; no building shall be located nearer than five (5) feet to any interior property line. For these purposes, eaves, steps, fireplaces, chimneys, open porches, fences, walks, driveways and decorative appurtenances shall not be considered as a part of a building. A detached garage may be located adjacent to an interior property line provided said garage is located on the rear one-half of said building plot.

Section 4. Building Area. No building shall be erected or placed on any plot which has an area of less than eight (8,000) thousand square feet except that a dwelling may be erected or placed on any original lot as shown on the recorded map of the Properties. No single-story dwelling having an area of less than one thousand two hundred (1,200) square feet, nor a two-story dwelling having a ground floor area of less than seven hundred (700) square feet, exclusive of garages, open porches and other appurtenances, shall be erected upon any plot. No dwelling shall be permitted on any plot at a cost of less than \$15,000 based upon cost levels prevailing on the date these covenants are recorded; it being the intention and purpose of this covenant to assure that all dwellings shall be of a quality of workmanship and materials substantially the same or better than that which can be produced at such cost on the date these covenants are recorded at the minimum permitted swelling size.

Section 5. Fences. (a) Except with the approval of the Committee hereinafter provided for, no fence, wall, hedge or garden appurtenance of any type shall be erected, placed or maintained in the area between the front street property line and a line parallel with said front street property line at the part of the dwelling nearest said front street property line, nor more than ten (10) feet closer to said front street property line than the dwelling on the adjoining building plot, if said building fronts on the same street; for the purpose of this sub-section, only the most forward part of the side of the adjoining dwelling toward the common plot line is to be considered, and the distance measured from the intersection of the common plot line with a line from and perpendicular to the said most forward part of the said side of the adjoining dwelling. No fence, wall, hedge or garden appurtenances of any type shall be erected, placed or maintained nearer than seven and one-half (7 1/2) feet to a side street property line, except with the approval of said Committee.

(b) Excepted from the provisions of this Section are fences, walls, hedges and garden appurtenances not exceeding twenty-four (24) inches in height (measured from the ground on which it stands).

(c) No fence, wall or hedge over six (6) feet in height (measured from the ground on which it stands) shall be erected, placed or maintained within the setback areas referred to in Section 3 of this Article. In the event said fence, wall or hedge is a common fence, wall or hedge between adjoining building plots and the ground elevation of said plots differ, the height of said fence, wall or hedge may be measured from the higher ground elevation of said adjoining plots at said fence, wall or hedge.

Section 6. Signs. No sign of any kind shall be displayed to the public view on any plot except one professional sign of not more than one square foot, one sign of not more than five square feet advertising the property for sale or rent, or signs used by a builder to advertise the property during the construction and sales period.

Section 7. Garbage and Refuse Disposal. No Lot shall be used or maintained as a dumping ground for rubbish. Trash, garbage or other waste shall not be kept except in sanitary containers. All incinerators or other equipment for the storage or disposal of such material shall be kept in a clean and sanitary condition.

Section 8. Architectural Control.

(a) No building shall be erected, placed or altered on any Lot until the construction plans and specifications and a plan showing the location of the structure have been approved by the Architectural Committee as to quality of workmanship and materials, harmony of the external design with the existing structures, and as to location with respect to topography and finish grade elevations. Approval shall be as provided in Part (c) of this Section. The Committee shall grant its approval if the proposed work is not detrimental to the subdivided property and is to be carried out in a manner generally consistent with the plan of development.

(b) The Architectural Control Committee is composed of ROBERT L. CRANE, JOHN H. THOMPSON and RICHARD E. POTTS, all located at 2295 De La Cruz Boulevard, Santa Clara, California. Said Architectural Control Committee is to have full and exclusive power to exercise those certain duties and privileges of the Architectural Control Committee as set forth in this Article III until such time as Declarant's (or any successor in interest) membership terminates as provided in Article IV. Thereafter, at any time, the then record owners of a majority of the Lots shall have the power, through a duly recorded written instrument, to change the membership of the Committee or to withdraw from the Committee or restore to it any of its powers and duties. A majority of the Committee may designate a representative to act for it. In the event of death or resignation of any member of the Committee, the remaining members shall have full authority to designate a successor. Neither the members of the Committee, nor its designated representative, shall be entitled to any compensation for services performed pursuant to this covenant.

(c) The Committee's approval or disapproval as required in these covenants shall be in writing. In the event the Committee, or its designated representative, fails to approve or disapprove within thirty (30) days after plans and specifications have been submitted to it, approval will not be required and related covenants shall be deemed to have been fully complied with.

Section 9. Miscellaneous. No trailer, tent, shack, garage, barn or other outbuilding shall at any time be used as a residence, either temporarily or permanently, nor shall any structure of a temporary nature be used as a residence, nor shall any trailer, truck, camper or commercial vehicle be stored or parked overnight on any plot in such a manner or place that it is visible from the street or adjoining building plots.

Section 10. Antennas. No antennas, towers, poles or any structure with the exception of those operated

by SJCTV that is installed, affixed, or mounted on the exterior of the dwelling unit or constructed on property for the purpose of receiving TV signals shall be allowed to be displayed to the public view.

Section 11. Landscaping. The front yard of all plots and side streets yards of corner plots shall be cultivated and landscaped and shall be maintained in a neat and orderly appearance free of rubbish, trash and other unsightly things.

Section 12. Prohibited Activities. No trade, commercial, professional or manufacturing enterprise shall be carried on or conducted upon any Lot or plot. No noxious or offensive activity shall be carried on or conducted upon any Lot or plot, nor shall anything be done thereon which may become an annoyance or nuisance to the neighborhood.

Section 13. Exceptions. Excepted from the provisions of this Article are the activities and structures necessary or convenient to the construction and sale of dwellings within the Properties, and the provisions of this Article shall not apply to the Common Area.

Section 14. Animals. No fowls or animals, other than the usual and common household pets, shall be kept or bred upon any Lot or plot.

Section 15. Breach. A breach of any of the provisions hereof shall not defeat or render invalid the lien of any Mortgage of Deed of Trust made in good faith and for value as to said premises, or any part thereof, but the provisions hereof shall be binding upon and effective against any owner of said premises, or any part thereof, whose title thereto is acquired by foreclosure, Trustee's sale or otherwise.

Section 16. Enforcement. Enforcement of the provisions of this Article shall be by proceedings at law or in equity against any person or persons violating or attempting to violate any covenants, either to restrain violation or to recover damages.

Section 17. Severability. Invalidation of any one of the covenants set forth in this Article by judgment or court order shall in no way affect any of the other provisions of this Article which shall remain in full force and effect.

Section 18. Oil and Mining Operations. No oil drilling, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted upon or in any Lot, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in any Lot. No derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained or permitted upon any Lot.

Section 19. Special Circumstances. It is intended that the provisions providing for the creation of reserves and free space be uniformly observed, provided, however, in the case of special circumstances the Declarants or the Committee hereinafter provided for may, subject to the zoning laws of the City of San Jose, permit digression from the requirements for reserves, fences and setback lines to relieve hardship or do equity when the same, in the opinion of Declarant or said Committee is warranted under the particular facts involved.

ARTICLE IV

MEMBERSHIP AND VOTING RIGHTS

Section 1. Every person or entity who is a record owner of a fee or undivided fee interest in any Lot which is subject by covenants of record to assessment by the Association, including contract sellers, shall be a member of the Association. The foregoing is not intended to include persons or entities who hold an interest merely as security for the performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any Lot which is subject by covenants of record to assessment by the Association.

Section 2. The Association shall have two classes of voting membership:

Class A. Class A members shall be all Owners with the exception of the Declarant and shall be entitled to one vote for each Lot owned. When more than one person holds an interest in any Lot, all such persons shall be members. The vote for such Lot shall be exercised as they, among themselves, determine, but in no event shall more than one vote be cast with respect to any Lot.

Class B. The Class B member(s) shall be the Declarant and shall be entitled to three (3) votes for each Lot owned. The Class B membership shall cease and be converted to Class A membership on the happening of any of the following events, whichever occurs earliest:

- (a) when the total votes outstanding in the Class A membership equal the total votes outstanding in the Class B membership, or
- (b) two years from the date of the issuance of the most recent Public Report for a phase of the overall development, or
- (c) on December 31, 1975.

ARTICLE V

COVENANT FOR MAINTENANCE ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligation of Assessments. The Declarant, for each Lot owned within the Properties, hereby covenants, and each Owner of any Lot by acceptance of a deed therefor, whether or not it shall be so expressed in such deed, is deemed to covenant and agree to pay to the Association: (1) annual assessments or charges, and (2) special assessments for capital improvements, such assessments to be established and collected as hereinafter provided. The annual and special assessments, together with interest, costs, and reasonable attorney's fees, if not paid within thirty (30) days after the same (or any part thereof) become due and payable, shall upon the recording at any time thereafter of a claim of lien by the Association, be and become a charge on the land and a continuing lien upon the property against which each such assessment is made, and the Association shall then have the right to enforce the payment of said assessments together with interest, costs, and reasonable attorney's fees in accordance with the laws of the State of California governing foreclosure and enforcement of liens. Each such assessment, together with interest, costs, and reasonable attorneys' fees, shall also be the personal obligation of the person who was the Owner of such property at the time when the assessment fell due. The personal obligation for delinquent assessments shall not pass to his successors in title unless expressly assumed by them.

Section 2. Purpose of Assessments. The assessments levied by the Association shall be used exclusively to promote the recreation, health, safety, and welfare of the residents in the Properties and the Members of the Association and for the improvement, repair, maintenance and management of the Common Area, and for payment of taxes on the Common Area and for such insurance as may be carried by the Association on Association-owned property

and for the other purposes of the Association.

Section 3. Maximum Annual Assessment. Until January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment shall be Ninety Dollars (\$90.00) per lot.

(a) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment may be increased each year not more than three percent (3%) above the maximum assessment for the previous year without a vote of the membership.

(b) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment may be increased above three per cent (3%) by the vote or written assent of fifty-one per cent (51%) of each class of members.

(c) The Board of Directors may fix the annual assessment at an amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvements. In addition to the annual assessments authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, repair or replacement of a capital improvement upon the Common Area, including fixtures and personal property related thereto, provided that any such assessment shall have the vote or written assent of fifty-one per cent (51%) of each class of members.

Section 5. Notice and Quorum for Any Action Authorized Under Sections 3 and 4. Any action authorized under Section 3 or 4 shall be taken at a meeting called for that purpose, written notice of which shall be sent to all members not less than thirty (30), nor more than sixty (60), days in advance of the meeting. If the proposed action is favored by a majority of the votes cast at such meeting, but such vote is less than the requisite fifty-one per cent (51%) of each class of members, members who were not present in person or by proxy may give their assent in writing, provided the same is obtained by the appropriate officers of the Association not later than thirty (30) days from the date of such meeting.

Section 6. Uniform Rate of Assessment. Both annual and special assessments must be fixed at a uniform rate for all Lots and may be collected on a monthly or other convenient basis.

Section 7. Date of Commencement of Assual Assessments: Due Dates. The annual assessments provided for herein shall commence as to all Lots on the first day of the month following the conveyance of the Common Area. The first annual assessment shall be adjusted according to the number of months remaining in the calendar year. The Board of Directors shall fix the amount of the annual assessment against each Lot at least thirty (30) days in advance of each annual assessment period. Written notice of the annual assessment shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. The Association shall, upon demand, and for a reasonable charge, furnish a certificate signed by an Officer of the Association setting forth whether the assessments on a specified Lot have been paid.

Section 8. Effect of Nonpayment of Assessments: Remedies of the Association. Any assessment not paid within thirty (30) days after the due date shall bear interest from the due date at the rate of six (6) per cent per annum. The Association may bring an action at law against the Owner personally obligated to pay the same, or, in accordance with Section 1 of this Article, foreclose the lien against the property. No owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the Common Area or abandonment of his Lot.

Section 9. Subordination of the Lien to Mortgages. The lien of the assessments provided for herein shall be subordinate to the lien of any first mortgage. Sale or transfer of any Lot shall not affect the assessment lien. However, the sale or transfer of any Lot pursuant to mortgage foreclosure or any proceeding in lieu thereof shall extinguish the lien of such assessments as to payments which became due prior to such sale or transfer. No sale or transfer shall relieve such Lot from liability for any assessments thereafter becoming due or from the lien thereof.

ARTICLE VI GENERAL PROVISIONS

Section 1. Enforcement. The Association, or any Owner, shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, covenants, reservations, liens and charges now or hereafter imposed by the provisions of this Declaration and relating to the Association. Failure by the Association or by any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 2. Severability. Invalidation of any one of these covenants or restrictions by judgment or court order shall in no wise affect any other provisions which shall remain in full force and effect.

Section 3. Amendment. The covenants and restrictions of this Declaration shall run with and bind the land, for a term of twenty (20) years from the date this Declaration is recorded, after which time they shall be automatically extended for successive periods of ten (10) years. This Declaration may be amended by an instrument signed by not less than seventy-five per cent (75%) of the Lot Owners. Any amendment must be recorded.

Section 4. Annexation. Additional land within the area more particularly described in Exhibit "C" attached hereto and made a part hereof may be annexed by the Declarant without the consent of members provided such annexation be accomplished within three (3) years of the date of this instrument. Additional residential property and Common Area may be annexed to the Properties with the consent of two-thirds (2/3) of each class of members.

Section 5. Captions. The captions or headings of the several Articles and Sections of this instrument are for convenience only and do not limit or restrict or modify the provisions of this instrument.

ARTICLE VII RIGHTS OF DECLARANT

Section 1. As used in this Article, the word "Declarant" shall be deemed to include DITZ-CRANE, a corporation, its nominees, and any successors in interest holding title for the purpose of construction and sale of residences, and the representatives of Declarant and any such successor. Declarant has undertaken or will undertake the work of constructing residences upon Lots located upon the Properties and improvements to the Common Area. The completion of that work and the sale and other disposal of said residences is essential to the improvement of said Properties. In order that said work may be completed as rapidly as possible, nothing in this Declaration or in the Articles, By-Laws or Rules shall be understood or construed to:

(a) Prevent Declarant from doing on said Properties or any part thereof owned or controlled by Declarant whatever is reasonably necessary or advisable in connection with the completion of said work;

(b) Prevent Declarant from erecting, constructing and maintaining on any part or parts of said Properties owned or controlled by Declarant such structures as may be reasonably necessary for the conduct of its business of completing said work and of disposing of said Properties in parcels by sale, lease, or otherwise, including without limiting the generality of the foregoing, tract construction and sales offices;

(c) Prevent Declarant from conducting on any part or parts of said Properties owned or controlled by Declarant its business of completing said work and of disposing of said Properties in parcels by sale, lease or otherwise; or

(d) Prevent Declarant from erecting, constructing and maintaining such sign or signs or other sales aids on any Lot or Lots owned or controlled by Declarant or on the Common Area, as may in the sole judgment of Declarant be reasonably necessary for the purposes set forth in this Article.

IN WITNESS WHEREOF, the undersigned has hereunto set its hand and seal this 3rd day of August, 1972.

DITZ-CRANE,
a corporation

By Robert L. Crane /s/
Robert L. Crane, Vice President

By John H. Thompson /s/
John H. Thompson, Ass't Secretary

THE UNDERSIGNED, as Trustee, hereby approves, consents to and joins in the execution of the foregoing Declaration of Covenants, Conditions and Restrictions.

THE CALIFORNIA-SANSOME CORPORATION,
a California corporation

By: W. Price /s/
W. Price, Vice President

By: Jerome H. Raube /s/
Jerome H. Raube, Assistant Secretary

EXHIBIT "A"

Lots 1 thru 78 inclusive, as shown on the Map of Tract No. 5052, Oak Tree Park, which Map was filed for record in the office of the Recorder of the County of Santa Clara, State of California on January 11, 1972 in Book 295 of Maps, Pages 7 and 8.

EXHIBIT "B"

Lot 15, as shown on the Map of Tract No. 5052, Oak Tree Park, which Map was filed for record in the office of the Recorder of the County of Santa Clara, State of California on January 11, 1972 in Book 295 of Maps, Pages 7 and 8.

EXHIBIT "C"

DESCRIPTION

Proposed Tract No. 5053

All that certain real property situate in the City of San Jose, County of Santa Clara, State of California, described as follows:

BEGINNING at the intersection of an Easterly line of Tract No. 5052 Oaktree Park, a map of which was filed for record in Book 295 of Maps at pages 7 and 8, Santa Clara County Records, with the centerline of Redmond Road as shown on said map; thence leaving said POINT OF BEGINNING and said centerline along the boundary of said Tract No. 5052 the following courses and distances: North 0°38'23" East 274.75 feet; North 16°37'11" West 86.42 feet; North 20°00'00" West 78.44 feet; North 15°35'29" West 68.06 feet; NORTH 493.22 feet; EAST 286.00 feet; SOUTH 160.90 feet; EAST 137.00 feet; SOUTH 4.09 feet; EAST 154.00 feet; NORTH 71.00 feet; South 89°21'00" East 134.98 feet; South 0°39'00" West 2.53 feet; South 89°21'00" East 149.00 feet; South 0°39'00" West 23.82 feet; South 89°21'00" East 159.00 feet to a point on the centerline of McAbee Road as shown on the map of Tract No. 4122 Sycamore Lane West, which map was filed for record in Book 227 of Maps at page 54, Santa Clara County Records; thence leaving the boundary of said Tract No. 5052 along the centerline of said McAbee Road and its Southerly prolongation South 0°39'00" West 855.83 feet to a point on said centerline of Redmond Road; thence leaving said Southerly prolongation along last said centerline South 89°27'40" West 943.21 feet to the POINT OF BEGINNING.

Containing 20.199 acres of land more or less.

"Covenants and restrictions if any, based upon race, color, religion, sex, handicap, familial status, or national origin are deleted in whole and only to the extent that said covenant (a) is exempt under Chapter 42, Section 3607 of the United States Code or (b) relates to handicap but does not discriminate against handicapped persons"

Doris J. Des Rochers
6079 Castello Dr.
San Jose, Cal
95120

C. 800 MAR 59

C. 800 MAR 59

FILED FOR RECORD
AT REQUEST OF

Oaktree Park Home Assn
MAR 5 2 33 PM '77

OFFICIAL RECORDS
SANTA CLARA COUNTY
GEORGE A. MAHN
REGISTRAR-CLERK

Amendment to the Declaration of
Covenants, Conditions and Restrictions of
Oaktree Park - Tract # 5052

(As recorded on August 14, 1972 in Volume 9970, Official Records,
Page 563, File # 4323739).

It is amended that Section 19 of Article III be deleted from the
Declaration of Covenants, Conditions and Restrictions of Oaktree Park -
Tract # 5052.

Said Section reads as follows:

No antennae, towers, poles or any structure with the
exception of those operated by S.J.C.T.V. that is installed,
affixed or mounted on the exterior of the dwelling unit or
constructed on property for the purpose of receiving TV
signals shall be allowed to be displayed to public view.

^{attached hereto}
This amendment was passed by a petition signed by more than 75%
of the Lot Owners, with each Lot receiving one vote as per Article IV,
Section 2 of the Covenants, Conditions and Restrictions of Oaktree Park
Tract # 5052.

Doris des Rochers

Doris des Rochers

Secretary, Oaktree Park Home Club

April 27, 1977

List of Homeowners, whose signatures appear on petition to amend
Section 10 of Article III of the Declaration of Covenants, Conditions
and Restrictions of Oaktree Park - Tract # 5052.

1. Mrs. James Patrick
2. Mrs. Steve Hardy
3. Mrs. Lewis B. Smith
4. Mr. Joseph J. Walraven
5. Mrs. Joanne Pulsifer
6. Mr. Thomas Gentemann
7. Mr. Mark Adamoli
8. Mr. Herman A. Gerke, Jr.
9. Mrs. Pat Connolly
10. Mrs. Trish Crowder
11. Mrs. Mary Ellen Kara
12. Mrs. Pat Mason
13. Mrs. D. Kao
14. Mr. Terry L. Feist
15. Mrs. Nella Galli
16. Mrs. Gayle McCulloch
17. Mr. Douglas W. Evans
18. Mr. John F. McNamara
19. Mr. Clark A. Preston
20. Mr. Spencer L. Roach
21. Mrs. Mary Jane Lafferty
22. Mrs. Audrey A. Duarte
23. Mr. John Athanassiou
24. Mr. Bob Massaro
25. Mr. Daniel Leiser
26. Mr. W. G. Eaton
27. Mr. Gregory M. Clark
28. Mr. T.E. Rogers
29. Mrs. Louise A. Johnson
30. Mrs. Renee Perry
31. Mrs. Helen Young
32. Mr. Paul J. Boddie
33. Mrs. Martha Brock
34. Mr. Dan Lo
35. Mr. T.D. Schleef
36. Mr. John L. Kruse
37. Mr. Terry R. Hardtke
38. Mr. F. J. Mossatti
39. Mr. Art Schneider
40. Mrs. Annalore Kohnath
41. Mrs. Meera Gupta
42. Mr. Nin-Chun Sheng
43. Mr. Patrick O'Shea
44. Mrs. Monica Facchini
45. Mrs. Hedy Gonchar
46. Mrs. Joyce Finch
47. Mrs. Nan Jensen
48. Mrs. Olivia Ernst
49. Mrs. Sue Brown
50. Mrs. Donna J. Hamel
51. Mrs. Yvonne G. Lichti
52. Mr. Robert E. Tracy
53. Mrs. Phyllis J. Wurscher
54. Mrs. Karl P. Des Rochers
55. Mrs. Marcia Guinton
56. Mrs. Barbara M. Anderson

57. Mrs. Gail Coleman
58. Mrs. Gaye Mason
59. Mrs. Colleen P. Mack
60. Mr. Kenneth B. Scow
61. Mrs. Paula M. Carter
62. Mrs. Judy Wilks
63. Mr. James M. Grondzik
64. Mrs. Marie Robascioti
65. Mr. William R. Pellett
66. Mr. Pasquale Esposito
67. Mr. Joseph A. Seitz
68. Mrs. Karen Miles
69. Mrs. Sharon E. Autio
70. Mrs. Susanne S. Sprowl
71. Mrs. Connis L. Lemberger
72. Mrs. Theodora M. Page
73. Mrs. Joan McDonald
74. Mrs. Marlene Pomeroy
75. Mrs. Beverly Bush
76. Mr. Hong-Wen Chen
77. Mrs. Barbara Jensen
78. Mr. Arthur K. Shiota
79. Mr. Anton Kerkoc
80. Mr. Michael La Marca
81. Mrs. Patricia Parker
82. Mrs. Judith Manley
83. Mr. Oscar Martinez
84. Mrs. Patricia La Mel
85. Mr. Ron Carmichael
86. Mrs. Carol Roberson
87. Mr. Gary Griffiths
88. Mrs. Sylvia Ayers
89. Mr. R. M. Elsorady
90. Mrs. Mary Ann Root
91. Mr. David L. Joyce, D.D.S.
92. Mr. Bill Koehmstadt
93. Mr. D.J. Collins
94. Mr. H. Mukhtar
95. Mrs. Earlene A. Murphy
96. Mrs. Janice Koski
97. Mrs. Linda Sessions
98. Mrs. Margaret Whittaker
99. Mrs. Rose Marie Enyeart
100. Mrs. Carol Schroeder
101. Mrs. Ina Vaughn
102. Mr. Gan T. Lee
103. Mr. Glenn N. Rosenthal
104. Mr. Larry Bridgman
105. Mrs. Carol Allan
106. Mr. William P. San Nicolas
107. Mrs. Jeannine Ardmand-Kermani
108. Mrs. Rose Togami
109. Mr. W.S. Cartwright
110. Mrs. Sandra J. Zades
111. Mrs. Tena Phillips
112. Mrs. Linda Groninger
113. Mrs. Elsie Morgan
114. Mr. Robert Szombathy
115. Mr. Morris Kerten
116. Mr. Oliver D. McLenore
117. Mrs. Jeanne N. Wolfe
118. Mrs. Marlene Willis
119. Mr. Michael De Mars

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Petition for removal of Section 10 of Article III from the
Declaration of Covenants, Conditions & Restrictions of Oaktree
Park - Tract # 5052

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We, the undersigned, by affixing our signature to this
petition, are in favor of removing Section 10 of Article III
of the Declaration of Covenants, Conditions & Restrictions of
Oaktree Park - Tract # 5052 from said declaration. Above named
Section reads as follows:

No antennas, towers, poles or any structure with the
exception of those operated by S.J.C.T.V. that is installed,
affixed or mounted on the exterior of the dwelling unit or
constructed on property for the purpose of receiving TV signals
shall be allowed to be displayed to public view.

Name	Lot #	Address
1. Mrs. Edward Patrick	#32	1264 Salvatore Dr.
2. Mrs. Steve Hardy	#20	1274 Christmas Ct.
3. Mrs. Lewis B. Smith	#26	1255 Christmas Ct.
4. Mr. J. W. Wahan	#25	1259 Christmas Ct.
5. Mrs. Jeanne Puley	#23	1267 Christmas Ct.
6. John L. Lister	#22	1271 CHRISTMAS CT.
7. Hank Adams	#19	1270 CHRISTMAS CT.
8. Herman A. Burke Jr.	#18	1262 CHRISTMAS CT.
9. Pat Connelly	#29	6057 CASTELLO DR.
10. Dick Corda	#20	1256 Salmon Dr.
11. Mary Ellen Kua	#31	1260 Salvatore Dr.
12. Pat Mason	#34	1272 Salvatore Dr.
13. B. Ligo	#36	1277 Salvatore Dr.
14. Henry J. Frost	#35	1276 SALVATORE DR.
15. Dick Galli	#38	1262 Oak Glen Way
16. Mike McCulloch	#39	1266 Oak Glen Way
17. Doug N. Enn	#41	1276 Oak Glen Way
18. Linda M. Mainieri	#42	1278 Oak Glen Way
19. Dick & Anita	#43	1271 Oak Glen Way
20. Spencer L. Ray	#44	1267 Oak Glen Way
21. Mary Jane Affety	#47	6035 Castello Dr.
22. Arthur A. Duarte	#64	6006 Castello Dr.
23. [Signature]	#63	6016 Castello Dr.
24. Ed Mason	#60	6060 Castello Dr.

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25	Donal Kusi	#56	6044 Castello Dr.
26	W. B. Esterson	#14	6111 Castello Dr.
27	Harry M. Clark	#54	6116 Castello Dr.
28	W. E. Rogers	#11	6149 Castello Dr.
29	Lucie A. Johnson	#10	6094 Crestak Ct.
30	Gene Deery	#7	6080 Crestak Ct.
31	John Young	#6	6077 Crestak Ct.
32	Paul T. Eddie	#5	6081 Crestak Ct.
33	Martha Brock	#4	6085 Crestak Ct.
34	Dan W.	#2	6093 Crestak Ct.
35	JD DePeet	#91	6197 Osterberg Dr.
36	John Deuel	#90	6183 Osterberg Dr.
37	John A. DeWitt	#93	6184 Osterberg Dr.
38	E. J. Romero	#82	6063 Osterberg Dr.
39	Art Schneider	#89	6187 Osterberg Dr.
40	Ann Marie Gurneth	#88	6153 Osterberg Dr.
41	Nleera Gump	#96	6146 Osterberg Dr.
42	NIN-CHUN SHENG	#97	6134 Osterberg Dr.
43	Radick Olson	#95	6156 Osterberg Dr.
44	Wing Jay Hooper	#87	6137 Osterberg Dr.
45	Hedy A. Boncher	#85	6107 Osterberg Dr.
46	John Finch	#83	6077 Osterberg Dr.
47	John Jones	#102	6048 Osterberg Dr.
48	Oliver Smart	#81	6047 Osterberg Dr.
49	John Brown	#80	6033 Osterberg Dr.
50	Donna Hane	#65	6003 Osterberg Dr.
51	Wynne D. Licht	#50	6001 Castello Dr.
52	Robert E. Trapp	#48	6023 Castello Dr.
53	Cheryl G. Hunsaker	#62	6028 Castello Dr.
54	John Paul S. Rahn	#27	6079 Castello Dr.
55	Marie Quintan	#55	6109 Castello Dr.

56 Barbara M. Anderson #101	6064 Autumnway Dr.
57 Earl Coleman #104	6018 Astenberg Dr.
58 Gay Mason #3	6089 Crestlake Ct.
59 William P. Rock #99	6094 Autumnway Dr.
60 Kenneth B. Scur #58	6072 Castello
61 Paula M. Carter #156	1229 Redmond
62 Judy Wick #157	1226 Ridge Oak Ct.
63 James M. Drendel #147	1235 Ridge Oak Ct.
64 Marie Bobascio #143	6121 Mc Cabe Rd.
65 William R. Pellett #142	6113 Mc Cabe Rd.
66 Suzanne E. Enright #140	6095 Mc Cabe Rd.
67 Joseph A. Kelly #138	6075 Mc Cabe Rd.
68 Karen Mideo #76	6054 Knoll Park Ct.
69 Sharon E. Antio #132	6088 Knoll Park Ct.
70 Suzanne S. Sprunt #133	6084 Knoll Park Ct.
71 Connie S. Semberger #128	6075 Knoll Park Ct.
72 Theodore M. Page #127	6071 Knoll Park Ct.
73 Joan M. Dwyer #126	6067 Knoll Park Ct.
74 Marlene Foxworth #74	6063 Knoll Park Ct.
75 Beverly Busch #24	1263 Chierona Ct.
76 David Van Cho #12	6137 Castello St.
77 Barbara Jensen #52	6138 Castello Dr.
78 Patrick K. Shota #154	1223 Redmond Ave.
79 Anton Kuntz #116	6191 Cedar Dring.
80 Michael LaMarea #40	1268 Oakgrove Way
81 Patricia Parker #84	6093 Astenberg Dr.
82 Judith Maylin #113	6177 Cecile St.
83 Paul J. Martin #112	6165 Cecile St. San Jose
84 Patricia LaMare #109	6129 Cecile St. San Jose
85 Joe Carroll #123	6106 Oak St. S.F.

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86. Carol Peterson, 6083 Knoll Park Ct. Lot # 130
87. Jay Smith, 1222 Ridge Oak Ct. Lot # 152
88. Sylvia Myers 1221 Redmond Dr. Lot # 153
89. R. M. Elorady 1333 Redmond Rd. Lot # 157
- ~~90. Mary Ann Root 6057 Cecala Dr. Lot # 67~~
91. David L. Jye, 1001 6168 Osterberg Dr. Lot # 94
92. Bill Kerkhof 6034 Osterberg Dr. Lot # 103
93. D. J. Church 6055 M^e BEE Dr. Lot # 77
94. H. Kerkhof 6124 Cecala Dr. Lot # 122
95. Evarlene A. Murphy 6140 Cecala Dr. Lot # 121
96. Janice Kosti 6152 Cecala Dr. Lot # 120
97. Linda Sessions 6162 Cecala Dr. Lot # 119
98. D. Kerkhof 6127 Castella Dr. Lot # 13
99. Rose Marie Emery 6189 Cecala Dr. Lot # 114
100. Carol Schroeder 6174 Cecala Dr. Lot # 118
101. Ina Vaughn 6153 Cecala Dr. Lot # 111
102. Jan L. 6093 Cecala Dr. Lot # 106
103. Glenn D. Kerkhof 6079 Knoll Park Ct. Lot # 129
104. Larry Bridgman 6076 Knoll Park Ct. Lot # 135
105. Carol Allen 6072 Knoll Park Ct. Lot # 136
106. William P. San Diego 6141 Cecala Dr. Lot # 110
107. Jacqueline Bridgman K. 6050 Castella Dr. Lot # 59
108. Rose Jorgani 1266 Christmas Ct., S.J. Lot # 18
109. A. Kerkhof 6017 Osterberg Lot # 7
110. Sandra J. Zales 1230 Ridge Oak Ct. S.J. Lot # 150
111. Jan Phillips 1234 Ridge Oak Ct. S.J. Lot # 149
112. Linda Morgan 6088 Cecala Dr. Lot # 9
113. Grace Morgan 6199 Cecala Dr. Lot # 15
114. Robert Kerkhof 6117 Cecala Dr. Lot # 108
115. Mary J. Kerkhof 1227 Redmond Dr. Lot # 155
116. Ann D. Kerkhof 6105 Cecala Dr.

117 Jeanne M. Wolfe 6049 Crestside Lot 8
 118 Michael Whelan 6049 Crestside Lot 22
 119 Michael J. Danner 6062 Cecala

120.

WITNESSES: Doris J. Des Rochers

STATE OF CALIFORNIA)
) ss.
 COUNTY OF SANTA CLARA)

On May 5, 1977 before me, the undersigned, a Notary Public in and for said State, personally appeared Doris J. Des Rochers personally known to me to be the person whose name is subscribed to the within instrument, as a Witness thereto, who being by me duly sworn, depose and says: That Doris J. Des Rochers resides San Jose, California and that she was present and saw the above persons personally known to her to be the same persons described in and whose names are subscribed to the within and annexed instrument as is a part thereto, execute and deliver the same, and she acknowledged to said affiant that she executed the same; and that said affiant subscribed her name thereto as a Witness. WITNESS my hand and official seal.

Bette L. McKinnon
 Notary Public

